Baseline Resource Report
Conservation Easement Property

339 – Lake Creek Idaho Conservation Easement

Kootenai County, Idaho

Easement Closing Date: December 29th, 2025

Prepared by: Rose Macaulay, Stewardship Director

Reviewed by: Michael Crabtree, Conservation Director

Inland NW Land Conservancy
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Baseline Resource Report Acknowledgement Letter

This acknowledgement is made by **JOHN D. BAUER and TERRY N. BAUER** (referred to in this acknowledgement as the "Grantor") and **INLAND NORTHWEST LAND CONSERVANCY**, whose address is 35 W. Main Avenue, Ste 210, Spokane, WA 99201 (referred to in this acknowledgement as "INLC").

1. The Grantor is the owner of approximately 342 acres of real Property located in Kootenai County, Idaho (referred to in this acknowledgement as the "Property") and has granted INLC a conservation easement on the entirety of that Property.

2. Grantor has made the Property available to INLC for the purpose of gathering information and data about the condition of the Conservation Values identified in the Conservation Easement as of the date of the grant, December 2025. This information and data have been compiled into a Baseline Report, entitled "Baseline Resource Report, Lake Creek Idaho Conservation Easement", dated December 2025 (the "Baseline Report").

3. In accordance with Treasury Regulation Section 1.170A-14(g)(5)(i), Grantor and INLC hereby acknowledge, declare, and agree that they have reviewed the information contained in the Baseline Report and that the Baseline Report provides an accurate representation of the condition of the Conservation Values to be protected by this Conservation Easement at the time of the transfer.

Grantor, John D. Bauer — Date

Grantor, Terry N. Bauer — Date

Inland Northwest Land Conservancy — Date
Rose Macaulay, Stewardship Director

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Baseline Resource Report

I. Background Information

Purpose of Baseline Documentation Report

The purposes of this Baseline Documentation Report are:

1. To document the significant Conservation Values on the Lake Creek Idaho Property that are the subject of, and protected by the Conservation Easement;
2. To describe existing land uses and development trends, both on the Lake Creek Idaho Property and in the surrounding area;
3. To provide a baseline of biological information, so that future conditions and trends, both natural and human-made, can be evaluated; and
4. To identify and document the condition of the Conservation Values, including the natural resources, conservation interests, and cultural improvements associated with the Lake Creek Idaho Property at the time of granting the Conservation Easement, and thereby to provide a baseline of information in the event that the holder of the Easement determines it is necessary under the terms of the Easement to exercise its rights to enjoin activities that are inconsistent with the terms of the Easement and/or enforce the reasonable restoration of such areas or features of the Property as may be damaged by such inconsistent activities.

Conservation Values and Reason for Acquisition

The Property contains or represents several core conservation values, including:

<u>Habitat Values for Native Species</u>

The Property provides exceptional habitat value within the wooded ridges of Mica Peak. Several hundred acres of unfragmented forest and diverse vegetation communities create space for a wide range of wildlife species. Creek corridors running throughout the Property, flowing into Lake Coeur d'Alene, add important riparian habitat, supporting fish populations and enriching the surrounding forest. The Property's size, intact condition, and topographic variety together ensure strong landscape connectivity and ecological function. Protecting this land safeguards an important piece of the region's natural heritage and reinforces the health of the broader habitat corridor.

<u>Aquatic Resources and Restoration</u>

The Property contains at least 7,200 feet of Lake Creek and its primary tributaries (West Fork Upper Lake Creek and Upper Lake Creek), and several thousand more feet of its smaller tributaries that flow down from Mica Peak and its foothills. Lake Creek is an important stream for the spawning, rearing, and migration of native fish, particularly westslope cutthroat trout. While the stream was already an important habitat feature, supporting wildlife throughout the Property, the enhancement and restoration of the creek by the Coeur d'Alene Tribe will increase the conservation and habitat value of the waterbody substantially over time. This restoration will include several habitat-oriented activities like riparian planting and installation of in-stream woody debris, replacement of several culverts to be appropriate for fish passage, treatment of invasive weeds, and relocation and tracking of native fish species to reintroduce them to the channel and re-establish more natural migration patterns.

<u>Carbon Capture Potential</u>
Protecting several hundred acres of working forest on the Property also provides meaningful carbon capture benefits. Mature and actively managed forests store significant amounts of carbon in both living trees and soils, while continuing to absorb carbon dioxide from the atmosphere. Maintaining these lands in forest use safeguards their long-term role as a natural climate solution, while also supporting sustainable forest management practices. The Property's size and intact condition make it particularly valuable for contributing to regional carbon storage and climate resilience.

<u>Climate Resilience</u>
In addition to its carbon capture potential, the Property ranks highly for climate resilience. Its variability in elevation, diverse topography, and unfragmented size contribute to a landscape that is well-positioned to adapt to changing climate conditions. These features create a variety of microhabitats that can support species movement and persistence over time, even as temperatures and precipitation patterns shift. Protecting this Property therefore not only preserves immediate ecological values, but also ensures the land can continue providing refuge and stability for plants, wildlife, and people in the face of long-term climate change.

<u>Cultural Significance to the Coeur d'Alene Tribe</u>
The Property lies within the usual and accustomed territory of the Coeur d'Alene Tribe, whose deep ties to this landscape extend back for countless generations. The Tribe's relationship with the land is rooted in traditional use, stewardship, and cultural connection. That relationship continues today through ongoing conservation and restoration efforts, including work to restore native trout runs in Lake Creek. Protecting this Property supports not only ecological health, but also the continuity of these longstanding cultural and environmental values. Recognizing and honoring the Tribe's connection underscores the significance of conserving this place for future generations.

<u>Preservation of Working Agricultural Lands</u>
The Property contains approximately 46 acres of agricultural land, used primarily to raise dryland crops like alfalfa and hay. Working agricultural lands of the Inland Northwest, including the dryland agricultural fields along the foothills of Mica Peak as they transition into the northern Palouse, represent a critical convergence of ecological function, cultural heritage, and regional resilience. These lands support locally rooted agricultural economies while maintaining expansive open space that contributes to soil conservation, groundwater recharge, and landscape-scale connectivity between forested uplands and cultivated lowlands. Dryland farming in this region reflects a long tradition of adaptive stewardship, shaped by climate, soils, and topography, and provides seasonal habitat, visual continuity, and a buffer against fragmentation and conversion to more intensive land uses. Protecting these working lands helps ensure agriculture remains a viable and flexible land use in the face of development pressure and climate uncertainty, while preserving the productive capacity and character of the Inland Northwest landscape.

<u>Connectivity</u>
The Property shares a boundary with extensive lands owned and managed by the Priest River Land Company and Inland Empire Paper. Together, these holdings form part of a largely undeveloped habitat corridor that supports wide-ranging wildlife and intact ecological processes. By adding this Property to the network of conserved and carefully managed lands, the project helps reinforce

landscape-scale connectivity and resilience on the south side of Mica Peak. The proximity to these large, managed forest tracts further enhances the Property's conservation value, ensuring it contributes meaningfully to the integrity of the broader habitat corridor.

Conservation Easement Prohibited Uses

Please refer to the recorded Conservation Easement for the full easement terms.

Any activity on or use of the Idaho Protected Property must be consistent with the Conservation Purposes of this Grant and Easement. Without limiting the generality of the foregoing, the following activities and uses are expressly prohibited:

(a) The Idaho Protected Property consists of 3 parcels, identified in Exhibit A (Legal description) and Exhibit B (Map). The Washington Protected Property consists of 3 parcels, described in Exhibit C. The Idaho Protected Property and the Washington Protected Property must always be conveyed together and cannot be conveyed separately or in parts. Grantor shall not legally or in a "de facto" manner subdivide or change the boundaries of the Idaho Protected Property, which actions shall include, but not be limited to, any subdivision, short subdivision, platting, binding site plan, testamentary division, lot line adjustment, or other process by which the Idaho Protected Property is divided into parts, or the dimensions or size of the Idaho Protected Property is changed. Grantor and Grantee agree that boundary line adjustments to the Idaho Protected Property may be made only pursuant to a judicial proceeding to resolve a bona fide dispute regarding a boundary line's location.

(b) All residential, commercial, or industrial activities shall be prohibited, and no building or structure shall be constructed, created, erected or moved onto the Idaho Protected Property, except as specifically permitted under Section 5 of this Grant and Easement. This prohibition includes communications towers, solar farms, and wind turbines. Permitted agricultural activities listed in Section 5 shall preclude using the Idaho Protected Property for agricultural equipment salvage yards and retail equipment sales activities that are unrelated to the agricultural operations being conducted on the property.

(c) Except as occurring in the normal course of agricultural and forestry operations, there shall be no disturbance of the surface, including but not limited to filling, excavation, removal of topsoil, sand, gravel, rocks, minerals or change of the topography of the Idaho Protected Property in any manner, except as may be reasonably necessary to carry out the permitted uses for the Idaho Protected Property. In no case shall the exploration for, or development and extraction of, minerals or hydrocarbons by any surface mining method or any other method be permitted. Nothing in this Grant and Easement shall be interpreted to permit any extraction or removal of surface materials inconsistent with Section 170(h)(5) of the Code and the applicable Treasury Regulations. Commercial timber harvesting must comply with a Forest Management Plan as allowed in Section 5 of this Grant and Easement, as approved by Grantee.

(d) There shall be no construction of new roads on the Idaho Protected Property other than as necessary for uses allowed under Section 5 of this Grant and Easement. This restriction includes the granting of third-party easements for new roads, trails or utilities.

(e) There shall be no granting of access easements for any third-party use of the existing road system on or across the Idaho Protected Property. Utility easements along and over the existing road system may be granted if the provided utility solely serves the Grantor's use and function of the Idaho Protected Property.

(f) There shall be no billboards or outdoor advertising of any kind erected or displayed; PROVIDED, however, Grantor may erect and maintain reasonable signs indicating boundary markers, signs restricting trespassing, temporary signs indicating the Idaho Protected Property is for sale or lease, and Grantor may, with the permission of Grantee, erect and maintain signs designating the Idaho Protected Property as land under the protection of the Grantee.

(g) The permanent placement, collection or storage of trash, human waste, or any unsightly or offensive material on the Idaho Protected Property is prohibited. Grantor shall clean up any trash that may occur from future illegal dumping activities.

(h) There shall be no draining, filling, dredging, ditching or diking of seasonal springs or wetlands and no watercourse alteration on the Idaho Protected Property, except for restoration work guided by currently adopted State & Tribal fish and wildlife agency plans, the CDA Basin Restoration Plan or other future plans as may be adopted by the governing agencies.

(i) There shall be no use of the Idaho Protected Property for commercial recreational activities, regardless of whether a building(s) would or would not be required, including tent campground sites, recreational vehicle sites, trailer rental sites, shooting ranges, gun clubs, hunting preserves, motor bike/all terrain vehicle riding tracks, and similar commercial activities.

(j) To provide for increased wildlife habitat and sanctuary areas in the Mica Peak region, the Grantor shall keep the Idaho Protected Property closed to open hunting access by the general public, including big game and upland birds.

(k) Grazing of livestock must not interfere with the Conservation Values of the Idaho Protected Property and in no case will it be allowed on any designated wetlands or within any waterways.

Conservation Easement Permitted Uses (Reserved Rights)

Please refer to the recorded Conservation Easement for the full terms of the easement.

Grantor hereby reserves the right to conduct the following uses of the Idaho Protected Property:

(a) Grantor retains exclusive use and control of the Idaho Protected Property. This Grant and Easement does not grant public access to the Idaho Protected Property for any purpose.

(b) The Conservation Easement is meant to serve as a "working lands" easement and allows for dryland commercial agricultural activities, including:

i. Growing and harvesting of agricultural crops for commercial sale.
ii. Raising livestock for personal use and/or commercial sale, including fencing, temporary shelters, and feeding or watering systems, provided the animals and infrastructure do not diminish the Conservation Values of the easement.
iii. The Grantor shall exercise state or federal approved best management practices for agriculture operations to limit soil erosion and control noxious weeds.
iv. Agricultural activities may be conducted by the Grantor or a tenant farmer hired by the Grantor.

v. The storage of agricultural equipment and products throughout the Idaho Protected Property as may be required for operations.
vi. Maintenance or replacement of existing agricultural buildings and the construction of new buildings and structures as required to support commercial agriculture operations of the farm property, including farm operations on leased properties. The size and location of farm buildings shall be determined by Grantor and must meet all state and county code requirements. General locations for future agricultural buildings are depicted in Exhibit D.

(c) This Grant and Easement is a "working lands" easement that allows for commercial forest management including:
i. Harvest of trees for commercial sale. This includes all dead and down trees and live standing trees as provided for in an approved forest management plan.
ii. Pre-harvest commercial thinning, brush control, weed control, the removal of diseased trees and other related types of forest management activities.
iii. Tree seedling planting.
iv. Maintenance of existing forest access roads and logging skid trails.
v. Motorized use within the Idaho Protected Property is not restricted as related to commercial forest management operations, except as required for protection of perennial waters as identified by the State of Idaho Department of Lands.
vi. Storage of equipment and products on the property as related to forestry operations.
vii. Commercial forest management shall be conducted in accordance with a Forest Management Plan (FMP) prepared by a Consulting Forester hired by the Grantor and approved by INLC. The FMP shall incorporate the following provisions:
    1. The property shall be divided into separate timber units that have comparable site conditions and management objectives. Recommendations are to be provided for each timber unit as related to immediate and long-term management goals.
    2. The existing forest access roads shall be identified in the FMP maps. The existing road system shall be used as the primary access system; however, some new road construction may be required for specific timber units. New road construction is to be minimized to the greatest extent possible.
    3. Protection of riparian zones, seasonal springs and wetlands, and related perennial surface waters shall be identified in the FMP, including the spawning reaches of Lake Creek.
    4. Forest practices shall include consideration for wildlife and big-game habitat. Harvest practices shall include provisions for retaining wildlife reserve trees and other similar habitat features.
    5. Harvesting recommendations shall utilize selective cut methods where priority is given to maintaining a diversity of tree species, age classes and sizes. Selective harvests should be done in such manner that all "leave" trees are vigorous dominant and co-dominant in nature with at least a 40% crown and void of any severe defect, disease or insect infestation. Post-harvest leave tree quantity shall be a minimum of twenty five (25) trees per acre with a 10" dbh (diameter at breast height) or greater.
    6. The FMP shall not recommend clearcut harvesting practices larger than 1 acre in size, except this practice may be used for larger areas in extreme situations where The Idaho Protected Property has been subject to wildfire damage or disease infestation. Any areas subject to clearcut harvesting shall be fully re-seeded within two years of harvest completion.

7. Prior to any harvest operations, an on-site consultation shall take place between the Grantor, the Grantor's Forester, the Logging Contractor and a representative of the Grantee to review the scope of the harvest work.
8. As a minimum, the Grantor shall update the FMP every 10 years and resubmit it for Grantee review and approval. Grantee review shall determine if the FMP revisions meet the provisions listed herein.

(d) Grantor may undertake activities necessary to protect public health and safety on the Idaho Protected Property, including, but not limited to activities required by local, state, or federal regulatory agencies; PROVIDED, that such activities shall be conducted in a manner which minimizes interference with the Conservation Purposes of this Grant and Easement.

(e) Road maintenance of the existing road system is permitted, including grading, graveling, ditching and realignment as necessary for access within the Idaho Protected Property.

(f) The Grantor may construct a private grass runway/airstrip and airplane hangar to be built at a future date for the exclusive use of the owners and their guests. (The location of the grass runway is generally depicted on Exhibit – D The size will be determined exclusively by Grantor and shall meet all Federal, State, and County code requirements.) See Exhibit - D

(g) Grantor may continue to exercise their water rights. This Grant and Easement does not impinge them.

(h) Grantor may conduct riparian restoration activities as allowed or conducted by State & Tribal fish and wildlife agencies. These activities include removal of fish passage barriers, tree & shrub planting, invasive weed control, stream woody material addition and fish monitoring. Grantee shall be notified prior to beginning restoration activities.

(i) Grantor may make site improvements, remodels or alterations as related to the existing home, including landscaping, fences, gardens, solar panels, outbuildings, road maintenance and other reasonable items related to the on-site residence. In the event of a catastrophic natural or manmade disaster that severely damages the residence, the Grantor may elect to fully rebuild the home.

(j) The Grantor may self-occupy the residence on the Idaho Protected Property or may elect to rent the existing single family residence to a third party.

(k) In addition to commercial agricultural and forest operations, the Grantor and their guests are allowed to use all portions of the Idaho Protected Property for their personal enjoyment including the following activities. These activities shall be consistent with the conservation values of the Protected Property:

   i. Construction and use of pervious, non-motorized trails and paths for walking, biking, horseback riding, snowshoeing and skiing. Motorized recreational uses within the Idaho Protected Property are not limited providing the motorized use is restricted to the existing forest access roads intended for vehicle traffic.
   ii. Standing dead or down trees may be gathered for Grantor's personal use within all portions of the Idaho Protected Property. Gathering operations allow for motorized vehicle use equivalent to that used for commercial forest operations. Wood gathering operations are exempt from notification requirements to Grantee.
   iii. Other similar types of non-commercial recreational activities.

Easements and Restrictions

Please refer to the Title Report and accompanying exception documents for a full description of all encumbrances that pre-dated the Conservation Easement.

File ID 1163616 – A 1989 easement for the purpose of establishing public utility lines and maintenance granted to Inland Power and Light Company.

File ID 1334852 – A 1993 easement for the purpose of ingress and egress, granted to John and Terry Bauer.

File ID 1334853 – A 1993 road maintenance agreement between Ruth Bauer and John and Terry Bauer.
File ID 2443375000 – A 2014 recording of a 1905 petition for the creation of a county road, now called Idaho Road.

II. Property Description

General Description (see Current Aerial Imagery Map)
The Lake Creek Idaho Property is a 342-acre tract of land located on the southern flanks of Mica Peak, approximately 11 miles from the town of Worley, Idaho.

Boundaries
The boundaries of the Property are relatively easy to find and monitor. All boundary lines shared with an external neighboring landowner are fenced with three-strand barbed wire, which is true to survey in most cases. All corners are relatively easy to find.

Water Resources
The Property contains at least 9,000 feet of Lake Creek, which meanders in small flows down Mica Peak into the main stem of the creek, and flows southward through the eastern third of the Property. The creek channel has been buffered intentionally over the last several years with riparian plantings of aspen, willow, and cottonwood. Culverts throughout this stretch of creek have been updated to meet fish passage standards with the support of the Coeur d'Alene Tribe.

Habitat Zones
There are three primary habitat zones on the Property:

- Upland Forest: The upland forested portion of the Property is an incredibly diverse, mixed-age forest composed of nearly every tree species that can be found in the Inland Northwest. It has been carefully managed over the years to promote a balanced woodland with canopy and understory, maximize tree health, and produce commercially viable timber.

- Commercial Agricultural Fields: Dryland fields on the Property are located in the central portion of the Property, north of the residence and driveway, and on both sides of Lake Creek. Crops in this portion of the Property rotate often, and may not provide substantial or intentional forage for wildlife, but cultivation of these crops does maintain open space for wildlife passage.

- Riparian Corridor and Associated Wet Meadows: The Property contains at least 9,000 feet of Lake Creek, which flows southward through the Property and eventually down into Lake Coeur d'Alene. The corridor surrounding the creek is made up of tree species like aspen, cottonwood, willow, and shrubs like red osier dogwood and spireas, all of which serve to outcompete invasive reed canary grass and develop a more diverse vegetative buffer around the creek. Wet meadows stem from the creek, particularly in the southernmost portion of the Property, where reed canary grass is currently dominant. While this grass is not a valuable forage species for wildlife, the open space is critical for wildlife passage.

Road Inventory
There are a handful of well-maintained logging roads throughout the Property which lead to the northeastern and southeastern portions of the Property. Additionally, there is a primary road that functions as a driveway leading past the large barn/hay storage structure and up to the primary residence. This access stems from Idaho Road, a public road. There is also a cleared and graveled area for parking heavy equipment near the barn.

Structures and other Human-Made Features
Property contains several structures, including:

- The primary residence of the Grantors, including gardens and other landscaping
- A large barn, which serves as a hay and equipment storage structure
- Animal feeding barn
- Fire suppression pump house
- A farm storage shed
- A concrete pad basketball court
- Underground well house
- Agricultural equipment storage yard
- Solar powered fish counting antenna, managed by the Coeur d'Alene Tribe

<u>Adjacency</u>
The Property shares a boundary with extensive lands owned and managed by Inland Empire Paper. There are also four non-industrial private adjacent landowners, none of which have substantially developed their property. Together, these holdings form part of a largely undeveloped habitat corridor that supports wide-ranging wildlife and intact ecological processes.

General Attributes (See Parcel Map and Record of Survey)
Total Acreage: 342 acres
Tax Parcels:
49N06W367000 – *20 acres*
48N06W012600 – *53 acres*
49N06W364700 – *269 acres*

Legal Description (see Record of Survey and/or Title Report)
The Property is described as follows:

<u>Parcel 1 (49N06W364700):</u>
Government Lots 1, 2, 3 and 4; the East Half of the Northwest Quarter, the East Half of the Southwest Quarter, and the West Half of the Southeast Quarter; all in Section 36, Township 49 North, Range 6 West, Boise Meridian, Kootenai County, Idaho. EXCEPT the South Half of the Southeast Quarter of the Southwest Quarter of said Section 36.

<u>Parcel 2 (49N06W367000):</u>
The South Half of the Southeast Quarter of the Southwest Quarter of Section 36, Township 49 North, Range 6 West, Boise Meridian, Kootenai County, Idaho.

<u>Parcel 3 (48N06W012600):</u>
Government Lot 3, Section 1, Township 48 North, Range 6 West, Boise Meridian, Kootenai County, Idaho.

Driving Directions
From downtown Spokane, navigate to I-90 and head east. Take exit 285 toward Appleway Boulevard and continue on Appleway for approximately 2 miles. Turn right onto Dishman Mica Road and continue for approximately 7.5 miles. Turn right onto WA-27 South toward Rockford and continue for approximately 6

miles. Turn left onto Elder Road and continue for another 6 miles. Turn left onto Idaho Road and continue for .75 miles, then turn right to stay on Idaho Road. The house (located on the associated Lake Creek Idaho conservation easement), will be past a large agricultural building on the east side of the creek.

> <u>Nearest Navigable Address</u>: 14848 Idaho Road, Worley, Idaho 83876
>
> <u>One-Way Travel Time from INLC Office</u>: 45 minutes
>
> <u>Round-Trip Mileage from INLC Office</u>: 56 miles

Property Elevation and Topography (See Soils & Hillshade Map)
The Lake Creek Idaho Property is situated on the southeastern slope of Mica Peak and is situated in the lower elevations of a large draw in the mountain. The highest elevation on the Property is in the northeast corner; 2,933 feet above sea level. The northwestern corner is also raised (the other side of the draw) and sits at an elevation of 2,743 feet above sea level. Between them, in the base of the draw where Lake Creek flows sits at an elevation of 2,676 feet above sea level. The lowest elevation of the Property is along the southern boundary, where Lake Creek continues to flow south toward Lake Coeur d'Alene; 2,563 feet above sea level.

Property History (see Forest Management Map)
The recent history of the Property was captured thoroughly by the Grantor's forester, Richard Schaefer, in the approved 2025 Forest Management Plan (Schaefer, 2025):

> "Gil and Ruth Bauer (John's parents) purchased the Property in a single purchase in July 1976. The ownership transitioned to John and Terry through a series of yearly gifts, completed in 2010. The Property size and boundaries have not changed since the original purchase.
>
> From the 1976 purchase until present, the Property has been used exclusively for dryland agricultural crops and commercial timber production.
>
> John lived on the Property continuously from 1976 to 1990. John and Terry have lived on the Property from 1990 to present. The Property includes their primary residence and agricultural related buildings.
>
> Prior to 1976, the Property had multiple owners dating back to the 1907 US government land patent. The original land patent was granted to Louis J. Miller on October 1, 1907. Other owners of the Property included AJ Elwart, B.R. Lewis Lumber Co., Blackwell Lumber Co., William Kruse, and Glen Coppersmith. There are old railbed remnants on the Property indicating that the previous lumber company ownership during the early 1900's included construction of a narrow gage railroad into the Bauer Property for moving logs to local sawmills.
>
> The Kruse/Coppersmith families used the Bauer Property for sheep ranching and commercial timber production from 1940 until the early 1960s. In addition to the Bauer Property being used as the "home-base" for their sheep ranching operation, they also utilized the Kootenai County "open range" laws allowing their sheep to graze on other higher elevation properties of Mica Peak.

> Kruse/Coppersmith did not use the Property year around and only occupied the Property during the non-winter months. As such, access to the Property included a non-graveled “summer road” and no telephone service. In the later years of their ownership, overhead electrical service was extended to the Property from Washington. As part of the Kruse/Coppersmith operations, prescribed burns were used to encourage new understory growth for sheep grazing. These prescribed burns were used extensively in Idaho Timber Units 1, 2, & 4 (located east of the residence). These prescribed burns over multiple decades lead to dense stands of lodgepole pine.
>
> After purchasing the Property in 1976, the Bauer ownership improved access on the Property with a year-round graveled road, including access across Lake Creek that would allow for logging truck traffic to the eastern portions of the Idaho Property. Telephone service and an underground electrical service were also provided to the Property.
>
> All adjoining properties are privately owned commercial timber ownerships and include a mix of individual and corporate owners. The Bauer Property has closing sections on both the Washington and Idaho sides of the state line. For the entire Bauer parcel, there are a total of twelve Property corners. Recently completed surveying now results in 11 of the 12 corners being officially monumented. The corners are marked C-1 through C-12 on the Forest Management Map (see attached). Corner C-4 has not been officially surveyed but is approximately located by historical fence lines.
>
> Lake Creek, a Class 1 fish spawning stream, bisects the Bauer ownership. This stream originates from Mica Peak and flows into Windy Bay of Lake Coeur d’Alene. It is a primary Westslope Cutthroat spawning stream for the southern portion of Lake Coeur d’Alene. Bauer Forest Units are located on both sides of the stream.
>
> In 2001, the Bauer ownership granted the Coeur d’Alene Tribe permission to conduct fish surveys on the Property. In 2018, the Bauer ownership entered into a formal 10-year mutual agreement with the Tribe to study and conduct riparian restoration projects. These projects included replacing culverts that restricted fish passage, planting trees to re-establish riparian shade, adding woody debris to the stream bed for improved fish habitat and planting native shrubs to compete with invasive non-native Reed Canary grass that has spread along most of the riparian reaches located adjacent to the agricultural fields. In addition, the Tribe has continued to implant microchips into adult and juvenile fish to trach fish movement. A ”fish antenna” has been installed on the stream to monitor the movements of the tagged fish.
>
> Past timber management includes commercial harvest cuts, pre-commercial thinning and seedling planting.”

The history of the Coeur d’Alene Tribe on or near the Property was captured in a cultural resources assessment completed by the Bonneville Power Administration in 2019 (Neuzil, 2019):

> “The first recorded interaction between members of the Coeur d’Alene and Euroamericans occurred during Lewis and Clark’s exploration of the Pacific Northwest, when they encountered three Coeur d’Alene camping with a group of Nez Perce at the confluence of the Potlatch and Clearwater Rivers (Schwantes 1991). The impacts of Euroamerican exploration and settlement had already reached the Coeur d’Alene, however, as epidemic disease, specifically smallpox, reached the Coeur d’Alene as early as 1780 (Palmer 1998). Prior to the devastating impacts of disease, the Coeur d’Alene population is estimated to have been 2000 to 5000 in total (Teit 193). Several small pox epidemics hit over the course of the late eighteenth and nineteenth centuries, reducing the Coeur d’Alene population to about 500 individuals by 1905 (Palmer 1998, Teit 1930).

Fur traders followed Lewis and Clark into the region around the APE to exploit and take advantage of sizeable beaver populations in the region. The Northwest Company, led by David Thompson, began expeditions through the region in 1807, and met several Coeur d'Alene groups in September and October 1809 along the Clarks Fork River. The Northwest Company was followed into the region by the Missouri Fur Company and the Pacific Fur Company in 1810 and 1812, and Peter Skene Ogden, noted fur trader, in the 1820s (Schwantes 1991). Overzealous fur trapping had a devastating impact on the ecology of the region, as was the case throughout the western United States. The near absence of beaver drastically degraded streams and related habitat, affecting fish runs and the availability of other natural resources.

Following on the heels of the fur trappers and traders, missionaries arrived in the region beginning in the 1830s to convert native groups, as well as pacifying them to pave the way for subsequent Euroamerican settlement (Schwantes 1991). A Coeur d'Alene prophecy, wherein Chief Circling Raven foresaw men sent by the "Great Chief who dwells in the sky" to teach the Coeur d'Alene smoothed the path for missionaries upon their arrival (Palmer, 1998). Jesuit Priest Pierre de Smet arrived in what would become Post Falls, Idaho in 1842, and along with Reverend Micholas Point established the Mission of the Sacred Heart on the banks of the St. Joe River (Palmer 1998; Rust 1912). Anthony Ravalli and Joseph M. Cataldo joined them shortly thereafter (Schwantes 1991). After several years of flooding, the Mission of the Sacred Heart was moved to a location near the subsequently established town of Cataldo, Idaho (Arrington 1994; Schwantes 1991). Over the course of several decades, Jesuit missionaries living among the Coeur d'Alene converted an estimated two-thirds of the population, and the missions established among the Coeur d'Alene were among the longest lasting as the settlement of the western United States progressed.

Although the Oregon Trail passed south of Coeur d'Alene territory, through the Snake River Valley, the influx of settlement brought to the Pacific Northwest by the Oregon Trail also impacted the Coeur d'Alene and what would become northern Idaho (Schwantes 1991). As was the case throughout much of the Pacific Northwest, the presence of Native Americans and their claims to vast territories used for subsistence and the maintenance of their culture was viewed as an impediment to Euroamerican settlement. The solution was to enter into treaties with tribes, which generally divided up traditional aboriginal territories into small areas exclusively for Native American use (reservations), and broad areas where Native rights to hunt, fish, and practice other subsistence were maintained, but also were opened to Euroamerican settlement. Washington territorial governor, Isaac I. Stevens visited the Coeur d'Alene in October 1953, promising land and clothing to every Coeur d'Alene family (Trafzer and Scheuerman 1986). Tensions among Euroamerican settlers and many of the native groups in the Washington and Oregon territories escalated in the 1850s, leading to several armed conflicts as many northwest tribes attempted to resist the dispossession of their lands. In May 1958, as many as one thousand Palouse, Spokane, Coeur d'Alene, Yakima, Pend Oreille, Flathead, and other Native Americans confronted Colonel Edward Steptoe near the modern town of Rosalia. Over the course of two days, the native groups surrounded Steptoe's party, but eventually allowed them to escape with few casualties (Trafzer and Scheuerman 1986). Later that year, the Coeur d'Alene consented to peace agreements (the "Treaty of Friendship") presented to them by Colonel George Wright (Emerson 2010).

The conflict of the 1850s and ensuring fallout set the stage for the subsequent agreement establishing the Coeur d'Alene reservation in 1873. The reservation was established by executive order, and required the Coeur d'Alene to relinquish 2.4 million acres (about 75 percent of their territory) to relocate to a 600,000 acre reservation (Schwantes 1991). The executive order establishing the reservation did not convey land title to the Coeur d'Alene or pay them any compensation for their ceded lands (Palmer 1998). Most Coeur d'Alene moved on to the reservation by 1877. Confinement to the reservation boundaries and pressure to pursue a Euroamerican subsistence strategy led to an increase in agriculture, and a decrease in traditional subsistence practices through the seasonal round (Palmer 1998). The Mission of the Sacred Heart, established by Jesuit missionaries in 1842 was outside the reservation boundaries, and was moved to DeSmet in 1878 so that it could continue serving the Coeur d'Alene (Arrington 1994, Palmer 1998). In 1889 an additional agreement negotiated by the Coeur d'Alene provided compensation for ceded lands, totaling $920 for each of 520 Coeur d'Alene tribal members, and $150,000 paid to the tribe (Palmer 1998). However, much of the land inside the boundaries of the Coeur d'Alene Reservation were lost between 1909 and 1913, when patents for some reservation land were issued to tribal and non-tribal members. Coeur d'Alene gained some additional reservation when the Indian Claims Commission awarded the tribe approximately $4 million in 1958. These funds were used by the tribe to purchase additional land (Palmer 1958).

Timber harvest and mining have made up the bulk of the economy in the region surrounding the APE [Property] during the late nineteenth and twentieth centuries (Palmer 1998). Lead, silver, and gold were all mined around Lake Coeur d'Alene in the 1880s, leading to a rapid increase in population in northern Idaho in the late nineteenth century (Arrington 1994). Timber harvesting was second only to agriculture in economic importance, leading to the development of railroads to transport harvested timber to mills, and processed timber to market, and the development of sawmills to process harvested timber (Arrington 1994). The timber industry was critical to the region surrounding the APE [Property]. The remnants of a narrow gauge railroad and steam donkey used to harvest and transport timber are present on U.S. Forest Service land just north of the APE [Property], and may have been used to transport timber to a small sawmill located on the western edge of the APE [Property] that was in operation in the 1940s (John Bauer, personal communication, 2019)."

Current Land Use and Development Envelope (see Development Envelope Map)

The Property is currently managed for sustainable timber and dryland crop production, and riparian habitat functionality and native fish population support by the Coeur d'Alene Tribe.

The INLC-approved 2025 Forest Management Plan for the Property defines the management objectives below (Schaefer, 2025).

1. To grow, manage, and sustainably harvest commercial tree species while enhancing forest health simultaneously.
2. To practice good forest stewardship and resource conservation by managing the forested acreage in an ecologically sustainable manner.
3. To engage in silviculture practices, including, but not limited to salvage and selective harvest, commercial thinning, over-story removal, pre-commercial thinning, tree planting, and vegetation control which will improve growth, quality, and value of the standing timber and promote forest health.
4. To reduce the fire hazard in overstocked areas, and simultaneously keep insects and disease under control.
5. To manage in such a manner that will protect and promote wildlife diversity and habitat.
6. To protect and promote cutthroat trout fish and spawning habitat.

The Coeur d'Alene Tribe have conducted significant riparian restoration efforts throughout Lake Creek and plan to continue that work with the support of the easement Grantors, including monitoring native trout habitat and behavior.

Other Human-made Features (see Development Envelope Map)
The Conservation Easement over the Property delineates a Residential Development Envelope which contains several structures, including:

- The primary residence of the Grantors, including gardens and other landscaping
- A large barn, which serves as a hay and equipment storage structure
- Animal feeding barn
- Fire suppression pump house
- A farm storage shed
- A concrete pad basketball court
- Underground well house
- Agricultural equipment storage yard
- Solar powered fish counting antenna, managed by the Coeur d'Alene Tribe

Along with all of these buildings are the utilities to serve them, including power, septic drain fields, and a well.

During the riparian restoration work in Lake Creek, the Coeur d'Alene Tribe installed temporary fish monitoring equipment to track fish passage up and down stream, primarily located in the segment of Lake Creek in the southern portion of the Property.

The boundary lines that are shared with neighboring landowners (the northern, eastern, and southern boundaries) are fenced with three-strand barbed wire, and these fences are almost entirely true to survey, and the corners are easy to find.

There are a handful of well-maintained logging roads throughout the Property which lead to the northeastern and southeastern portions of the Property. Additionally, there is a primary road that functions as a driveway leading past the large barn/hay storage structure and up to the primary residence. There is also a cleared and graveled area for parking heavy equipment near the barn.

Public Benefit (see Location Map)
The Property provides or compliments several benefits that impact the broader Inland Northwest region and all communities that live within it, including several core goals within the natural resources portion of Kootenai County's 2020 Comprehensive Plan (Commission, 2020).

Environmental Stewardship and Resource Protection
The protection of intact forest and riparian habitat in Kootenai County supports the County's Comprehensive Plan goals for conserving natural resources and maintaining the ecological functions that sustain the region's environmental health. Intact forest cover provides critical watershed functions, including surface water filtration, sediment reduction, and temperature regulation, while riparian buffers enhance bank stability and ecological integrity. The presence of a restored fish-bearing stream further elevates the conservation value by providing high-quality aquatic habitat, supporting native fish populations, and contributing to watershed-scale ecological

connectivity. Forest and riparian conservation also help sustain carbon storage and air quality benefits, aligning with broader climate resilience objectives.

<u>Sustainable Growth Management and Rural Character</u>
Protecting forested and riparian lands is consistent with Kootenai County's land use goals, which emphasize directing growth toward existing developed areas while maintaining rural landscapes, open space, and environmental quality. Conservation of this Property helps prevent low-density residential expansion into sensitive resource lands, reduces long-term infrastructure and service demands, and preserves the scenic, undeveloped character of the surrounding area. These outcomes align with county objectives to balance growth with natural resource protection.

<u>Water Quality and Aquatic Resource Protection</u>
The presence of a restored, fish-bearing stream (Lake Creek) provides a direct and measurable contribution to water quality and aquatic habitat goals identified in the Comprehensive Plan. Forested riparian buffers help regulate stream temperatures, filter nonpoint source pollutants, and reduce sedimentation, improving habitat conditions for native fish and other aquatic species. These functions also support regional watershed health by maintaining stable hydrology and improving water quality for downstream users, particularly those in the southern portion of Lake Coeur d'Alene. Protecting and maintaining these resources aligns with county objectives for safeguarding surface water and preserving ecological functions associated with riparian corridors.

<u>Public Health, Safety, and Resilience</u>
Conserving this forested and riparian landscape contributes to public health and safety goals by supporting natural systems that reduce hazard risks and provide ecosystem services. Forest cover and stream corridors can mitigate flood impacts by absorbing and slowing runoff, reducing peak flows during storm events, and stabilizing streambanks. These functions help protect downstream infrastructure and private Property, advancing the County's objectives for hazard mitigation and community resilience. Forested areas also support air quality, reinforcing public health benefits.

<u>Preservation of Commercial Agricultural Land</u>
Conserving this working agricultural landscape contributes to public benefits by sustaining dryland farming systems that support soil health, water infiltration, and long-term land productivity. Actively managed agricultural fields help maintain open space, reduce fragmentation, and provide a functional transition between forested uplands and more intensively developed areas. Dryland agricultural practices in this setting can limit erosion, support groundwater recharge, and preserve the ecological and visual continuity of the broader Palouse landscape. Together, these functions help maintain the economic viability of agriculture, support orderly growth patterns, and reduce pressure for conversion to more intensive land uses, reinforcing broader community resilience and land-use objectives.

<u>Open Space, Scenic Values, and Quality of Life</u>
Even without public access or recreational development, the permanent protection of this Property contributes meaningfully to the County's open space and scenic preservation goals. Forested and riparian corridors enhance the natural landscape character of rural areas, maintain scenic quality, and preserve critical ecological functions that support fish and wildlife populations. These outcomes reinforce community identity and the quality of life valued by county residents. They also complement regional conservation strategies that emphasize the interconnectedness of open space, water resources, and habitat protection.

Although the Kootenai County Comprehensive Plan does not explicitly address this, both INLC and the easement Grantors value the restoration of functional habitat and traditional resources for local tribes, including the Coeur d'Alene Tribe. The Tribe has contributed substantial expertise and resources to restore and protect the Property, returning Lake Creek to a more natural state and supporting native trout populations within the stream and in Lake Coeur d'Alene. By securing this Property with a Conservation Easement, the ecological improvements to Lake Creek will be maintained, enhancing conditions for native trout and contributing to traditional resource values for the Coeur d'Alene Tribe.

III. Ecological Features

<u>Physical Features</u>

Soils (see Soils & Hillshade Map)
The Lake Creek Idaho Property contains the soil types that are listed below, which are sourced from the United States Department of Agriculture Soil Survey of Kootenai County Area, Idaho (U.S. Department of Agriculture, 2025). The soil information provided below is summarized and a full description can be found on the USDA's Natural Resources Conservation Service Soils website.

<u>132 – Kruse ashy silt loam, 5-20% slopes</u>
This soil type typically forms on hillslopes from mixed volcanic ash and loess over residuum and colluvium derived from schist and/or gneiss, with the upper horizons being composed primarily of decomposed plant materials and becoming increasingly clay-rich with additional depth. The soil is well drained, has high available water supply and never floods or ponds. The depth to the water table is over 80 inches. This soil unit is not prone to erosion. Native vegetation commonly found in this soil type includes grand fir and mallow ninebark.

<u>133 – Kruse ashy silt loam, 20-35% slopes</u>
This soil type typically forms on hillslopes from mixed volcanic ash and loess over residuum and colluvium derived from schist and/or gneiss, with the upper horizons being composed primarily of decomposed plant materials and becoming increasingly clay-rich with additional depth. The soil is well drained, has high available water supply, and never floods or ponds. The depth to the water table is over 80 inches. This soil unit is somewhat prone to erosion. Native vegetation commonly found in this soil type includes grand fir and mallow ninebark.

<u>134 – Kruse-Ulricher association, 35-65% slopes</u>
This soil type typically forms on mountain slopes from mixed volcanic ash and loess over residuum and colluvium derived from schist and/or gneiss, with the upper horizons being composed primarily of decomposed plant materials and becoming increasingly clay-rich with additional depth. The soil is well drained, has high available water supply, and never floods or ponds. The depth to the water table is over 80 inches. This soil unit is extremely prone to erosion. Native vegetation commonly found in this soil type includes grand fir and mallow ninebark.

<u>165 – Santa ashy silt loam, 2-8% slopes</u>
This soil type typically forms on hillslopes from mixed volcanic ash and loess with the upper horizons being composed primarily of ashy silt loam and becoming increasingly silty with additional depth. The soil is moderately well drained, has low available water supply, and never floods or ponds. The depth to the water table is between 8-22 inches. This soil unit is not prone to erosion. Native vegetation commonly found in this soil type includes grand fir and common snowberry.

<u>166 – Santa ashy silt loam, 8-15% slopes</u>
This soil type typically forms on hillslopes from mixed volcanic ash and loess with the upper horizons being composed primarily of ashy silt loam and becoming increasingly silty with additional depth. The soil is moderately well drained, has low available water supply,

and never floods or ponds. The depth to the water table is between 8-22 inches. This soil unit is not prone to erosion. Native vegetation commonly found in this soil type includes grand fir and common snowberry.

<u>167 – Ashy silt loam, 15-35% slopes</u>
This soil type typically forms on hillslopes from mixed volcanic ash and loess with the upper horizons being composed primarily of ashy silt loam and becoming increasingly clay-rich with additional depth. The soil is moderately well drained, has low available water supply, and never floods or ponds. The depth to the water table is between 16-25 inches. This soil unit is somewhat prone to erosion. Native vegetation commonly found in this soil type includes grand fir and common snowberry.

<u>199 – Vassar ashy silt loam, 30-65% slopes</u>
This soil type typically forms on mountain slopes from volcanic ash and loess over residuum weathered from granite and gneiss with the upper horizons being composed primarily of ashy silt loam and becoming increasingly gravelly with additional depth. The soil is well drained, has moderate available water supply, and never floods or ponds. The depth to the water table is over 80 inches. This soil unit is moderately prone to erosion. Native vegetation commonly found in this soil type includes western red cedar and wild ginger.

<u>1120 – Lovell ashy silt loam, 0-3% slopes</u>
This soil type typically forms in drainageways from mixed alluvium with an influence of loess and volcanic ash in the upper part with the upper horizons being composed primarily of ashy silt loam and becoming increasingly clay-rich with additional depth. The soil is somewhat poorly drained, has very high available water supply, and occasionally floods or ponds. The depth to the water table is 19-24 inches. This soil unit is not prone to erosion. Native vegetation commonly found in this soil type includes willows and sedges.

<u>1300 – Aquepts ashy loam, frigid, 0-3% slopes</u>
This soil type typically forms in drainageways and flood plains from mixed alluvium with the upper horizons being composed primarily of ashy loam and becoming increasingly sandy with additional depth. The soil is poorly drained, has moderate available water supply, and frequently floods or ponds. The depth to the water table is 4-12 inches. This soil unit is not prone to erosion. Native vegetation commonly found in this soil type includes willows and sedges.

<u>5143 – Jacot-Hysing complex, dry, 15-30% slopes</u>
This soil type typically forms on mountain slopes and hills from a thick mantle of volcanic ash over colluvium and residuum derived from granite and/or quartz monzonite with the upper horizons being composed primarily of ashy silt loam and becoming increasingly sandy with additional depth. The soil is well drained, has moderate available water supply, and never floods or ponds. The depth to the water table is over 80 inches. This soil unit is somewhat prone to erosion. Native vegetation commonly found in this soil type includes grand fir and bride's bonnet.

<u>5602 – Lakestarr-Santa complex, 8-15% slopes</u>
This soil type typically forms on mountains and hills from a thin mantle of volcanic ash and loess over colluvium derived from pre-tertiary felsic gneiss, schist, and till, with the upper horizons being composed primarily of ashy silt loam and becoming increasingly sandy with additional depth. The soil is moderately well drained, has moderate available

water supply, and never floods or ponds. The depth to the water table is 15-20 inches. This soil unit is not prone to erosion. Native vegetation commonly found in this soil type includes western hemlock and wild ginger.

<u>5603 – Lakestarr-Santa complex, 15-30% slopes</u>
This soil type typically forms on mountains and hills from a thin mantle of volcanic ash and loess over colluvium derived from pre-tertiary felsic gneiss, schist, and till, with the upper horizons being composed primarily of ashy silt loam and becoming increasingly sandy with additional depth. The soil is moderately well-drained, has high available water supply, and never floods or ponds. The depth to the water table is 15-20 inches. This soil unit is somewhat prone to erosion. Native vegetation commonly found in this soil type includes western hemlock and wild ginger.

Water Resources (see Water Resources Map)
The Lake Creek Idaho Property contains significant water resources which are one of the primary purposes for land protection and restoration efforts. The easement area contains approximately 7,200 feet of Lake Creek and its tributaries, which is a known priority habitat area for native trout.

Wetland habitat on the Property is also extensive. The following wetlands have been classified by the U.S. Fish and Wildlife Service and observed on the Property (Service, Wetlands Mapper, 2025):

<u>Riverine Wetland</u>

<u>R5UBH</u>
This is a riverine (R) wetland system, which includes all wetlands and deepwater habitats contained within a channel. The system is considered unknown perennial (5), which is a classification specifically used when the distinction between lower perennial, upper perennial, and tidal cannot be made from aerial photography and no data is available. This system has an unconsolidated bottom (UB), which includes all wetlands and deepwater habitats with at least 25% cover of particles smaller than stones and a vegetative cover less than 30%. The system is considered permanently flooded (H) in which water covers the substrate throughout the year in all years.

<u>Freshwater Pond</u>

<u>PUBH</u>
This is a freshwater, palustrine (P) pond. The area has an unconsolidated bottom (UB), which includes all ponds and wetlands and deepwater habitats with at least 25% cover of particles smaller than stones and a vegetative cover less than 30%. The system is considered permanently flooded (H) in which water covers the substrate throughout the year in all years.

<u>PUBHh</u>
This is a freshwater, palustrine (P) pond. The area has an unconsolidated bottom (UB), which includes all ponds and wetlands and deepwater habitats with at least 25% cover of particles smaller than stones and a vegetative cover less than 30%. The system is considered permanently flooded (H) in which water covers the substrate throughout the year in all years. This wetland code was given an additional modifier (h) which indicates that these ponds have been created or

modified by a man-made barrier or dam that obstructs the inflow or outflow of water.

PUBHb

This is a freshwater, palustrine (P) pond. The area has an unconsolidated bottom (UB), which includes all ponds and wetlands and deepwater habitats with at least 25% cover of particles smaller than stones and a vegetative cover less than 30%. The system is considered permanently flooded (H) in which water covers the substrate throughout the year in all years. This wetland code was given an additional modifier (b) which indicates that these wetlands have been created or modified by beaver (castor canadensis). Dam-building by beaver may increase the size of existing wetlands or create small impoundments that are easily identified on aerial imagery. Such flooding frequently creates Dead Forested or Dead Scrub-Shrub Wetland initially, followed in a few years by Aquatic Bed and Emergent Wetland.

Freshwater Emergent Wetland

PEM1C

This is a freshwater, palustrine (P) wetland. The area contains emergent (EM) vegetation which is characterized by erect, rooted, herbaceous plants, including mosses and lichens. This vegetation is present for most of the growing season in most years and plants are typically perennial in nature. Vegetation is also considered persistent (1), wherein vegetation normally remains standing until the beginning of spring when new vegetation emerges. This wetland is seasonally flooded (C) and surface water is present for extended periods in the spring, but absent by the end of the summer in most years.

PEM1F

This is a freshwater, palustrine (P) wetland. The area contains emergent (EM) vegetation which is characterized by erect, rooted, herbaceous plants, including mosses and lichens. This vegetation is present for most of the growing season in most years and plants are typically perennial in nature. Vegetation is also considered persistent (1), wherein vegetation normally remains standing until the beginning of spring when new vegetation emerges. This wetland is semi-permanently flooded (F) and surface water persists throughout the growing season in most years. When surface water is absent, the water table is usually at or very near the land surface.

PSS1C

This is a freshwater, palustrine (P) wetland. The area contains scrub-shrub (SS) vegetation which is characterized by woody vegetation less than 6 meters tall and includes species like true shrubs, young trees, and trees or shrubs that are small or stunted because of environmental conditions. Vegetation is also considered broad-leaved deciduous (1) – woody angiosperms with relatively wide, flat leaves that are shed during the cold or dry season. This wetland is seasonally flooded (C) and surface water is present for extended periods in the spring, but absent by the end of the summer in most years.

Geologic Features
The Lake Creek Idaho Property contains the geologic units described below, summarized from the U.S. Geological Survey Greenacres Quadrangle of Washington and Idaho (Weis, 1968).

<u>Qal – Alluvium</u>
Stream deposits. Includes silt, sand, and gravel; locally merges into lake sediments.

<u>Qp – Palouse Formation</u>
Brown to tan loess. As mapped includes thin layer of recent loess at top.

<u>Tcr – Columbia River Group</u>
Flows of dark, dense, fine-grained tholeiitic basalt. Locally includes pillow lavas and palagonite tuffs.

<u>Gm – Gneiss of Mica Peak</u>
Light gray, coarse-grained muscovite-quartz-feldspar schist, commonly with more than fifty percent mica. Schistosity well developed, generally regular, but locally intensely contorted. Segregation gneiss, with mica-rich layers separating quartz-feldspar-rich layers. Sillimanite and biotite present in places. Abundant granitic and pegmatitic bodies, concordant and crosscutting, in some areas make up as much as fifty percent of the rock. Granitization extensive. Small scattered amphibolite bodies in the eastern part. Contact with underlying gneiss gradational over fifty to one hundred feet.

Climate Resilience (see Climate Resilience map)
The Inland Northwest Land Conservancy strives to protect lands that will be resilient in the face of climate change. To assess a Property's resilience, the Conservancy consults a nation-wide dataset compiled by The Nature Conservancy, which was then tuned to the Inland Northwest by FLO Analytics. A Property's resilience (far above average, above average, average, below average, or far below average) is estimated based on its landscape diversity (topography, soil types, and soil moisture content) and local connectedness (landscape fragmentation by development or small-parcel private ownership). The model does not currently consider existing biodiversity.

The Property is estimated to have above average or far above average resilience, likely due to the connectivity, elevation, and topographic diversity of the Property. Adjacent lands ranked above or far above average in resilience as well.

<u>Biological Features</u>

Vegetation
The Lake Creek Idaho Property contains the vegetation species listed in Table 1 below, which were recently observed on the Property by INLC staff during the baseline site visit or by the easement Grantor.

Table 1: Vegetation Species of Lake Creek Idaho	
Trees	
Western redcedar	*Thuja plicata*
Douglas fir	*Pseudotsuga menziesii*
Lodgepole pine	*Pinus contorta*
Grand fir	*Abies grandis*
Western hemlock	*Tsuga heterophylla*
Western larch	*Larix occidentalis*
Ponderosa pine	*Pinus ponderosa*
Black cottonwood	*Populus trichocarpa*
Quaking aspen	*Populus tremuloides*
Water birch	*Betula occidentalis*
Western white pine	*Pinus monticola*
Engelmann Spruce	*Picea engelmannii*
Shrubs	
Common snowberry	*Symphoricarpos albus*
Rocky Mountain maple	*Acer glabrum*
Woods rose	*Rosa woodsii*
Nootka rose	*Rosa nutkana*
Oceanspray	*Holodiscus discolor*
Tall Oregon grape	*Mahonia aquifolium*
Mallow ninebark	*Physocarpus malvaceus*
Red osier dogwood	*Cornus sericea*
Nootka rose	*Rosa nutkana*
Douglas spirea	*Spiraea douglasii*
Birch-leaved spirea	*Spirea betulifolia*
Mountain huckleberry	*Vaccinium membranaceum*
Serviceberry	*Amelanchier alnifolia*
Black hawthorn	*Crataegus douglasii*
Choke cherry	*Prunus virginiana*
Trailing raspberry	*Rubus pubescens*
Thimbleberry	*Rubus parviflorus*
Cascara	*Rhamnus purshiana*
Redstem ceanothus	*Ceanothus sanguineus*
Barclays willow	*Salix barclayi*
Scouler’s willow	*Salix scouleriana*
Sitka willow	*Salix sitchensis*
Mountain alder	*Alnus incana*
Mock orange	*Philadelphus lewisii*
Blue elderberry	*Sambucus caerulea*
Orange honeysuckle	*Lonerica ciliosa*

Kinnikinnick	*Arctostaphylos uva-ursi*
Prince's pine	*Chimaphila umbellata*
Grasses	
Pine grass	*Calamagrostis rubescens*
Idaho fescue	*Festuca idahoensis*
Bluebunch wheatgrass	*Agropyron spicatum*
Blue wildrye	*Elymus glaucus*
Mountain hairgrass	*Vahlodea atropurpurea*
Mountain Fescue	*Festuca saximontana*
Ferns and Allies	
Bracken	*Pteridium aquilinum*
Fragile fern	*Cystopteris fragilis*
Beech fern	*Thelypteris phegopteris*
Common horsetail	*Equisetum arvense*
Scouring rush	*Equisetum hyemale*
Groundcovers and Forbs	
Narrow-leaved Hawkweed	*Hieracium umbellatum*
Yellow salsify	*Tragopogon dubius*
Yarrow	*Achillea millefolium*
Cut-leaved daisy	*Erigeron compositus*
Leafy aster	*Aster foliaceus*
Heart-leaved arnica	*Arnica cordifolia*
Arrow-leaved groundsel	*Senecio triangularis*
Western groundsel	*Senecio integerrimus*
Canada goldenrod	*Solidago canadensis*
Spikelike goldenrod	*Solidao spathulate*
Arrowleaved balsamroot	*Balsamorhiza sagittata*
Woolly pussytoes	*Antennaria lanata*
Pearly everlasting	*Anaphalis margitacea*
Pathfinder	*Adenocaulon bicolor*
Pineapple weed	*Matricaria discoidea*
Common tansy	*Tanacetum vulgare*
Common plantain	*Plantago major*
Stinging nettle	*Urtica dioica*
Self-heal	*Prunella vulgaris*
Silky lupine	*Lupinus sericeus*
Arctic lupine	*Lupinus arcticus*
Small-flowered blue-eyed Mary	*Collinsia parviflora*
Stream violet	*Viola glabella*
Ballhead waterleaf	*Hydrophyllum capitatum*
Spreading dogbane	*Apocynum androsaemifolium*

Upland larkspur	*Delphinium nuttallianum*
Wild ginger	*Asarum caudatum*
Wild strawberry	*Fragaria virginiana*
Lyall's Rockcress	*Arabis lyalli*
Purple-leaved willowherb	*Epilobium ciliatum*
Cow parsnip	*Heracleum lanatum*
Fern-leaved desert parsley	*Lomatium dissectum*
Miner's lettuce	*Claytonia perfoliate*
Fringecup	*Tellima grandiflora*
One-leaved foamflower	*Tiarella unifoliata*
Small-flowered woodland star	*Lithophragma parviflorum*
Pinedrops	*Pterospora andromedea*
Fairyslipper	*Calypso bulbosa*
Large-flowered tritelia	*Brodiaea douglasii*
Chocolate lily	*Fritillaria lanceolata*
Yellow bell	*Fritillaria pudica*
False solomon's seal	*Smilacina racemosa*
Meadow death camas	*Zigadenus venenosus*
Skunk cabbage	*Lysichiton americanum*
Invasive Species	
Spotted knapweed	*Centaurea stoebe*
Common mullein	*Verbascum thapsus*
Reed canary grass	*Phalaris arundinacea*
Dalmatian toadflax	*Linaria genistifolia*
Viper's bugloss	*Echium vulgare*
Common St. John's Wort	*Hypericum performatum*
Sulfur cinquefoil	*Ptentilla recta*
Cheatgrass	*Bromus tectorum*

Fish, Wildlife, and Species of Concern

The Property contains or is part of the expected range of six species of concern, according to the U.S. Fish and Wildlife Service's Environmental Conservation Online System (Service, ECOS Environmental Conservation Online System, 2025). These species include:

- Bull Trout, *Salvelinus confluentus*
- Westslope Cutthroat Trout, *Oncorhynchus clarkii lewisi*
- Canada Lynx, *Lynx canadensis*

During the baseline visit to the Property, it was evident that wildlife is abundant and well distributed across the landscape. Indicators included significant game trails, elk wallows, nesting and fishing trees, and numerous bedding areas. Additional signs such as tracks, scat, burrows, and beaver activity along creek corridors further demonstrate consistent use of the Property by a variety of species. Bird activity was notable, with raptors, songbirds, and cavity-nesting species present, and a strong insect and pollinator population observed throughout. Collectively, these indicators confirm the Property's role as high-quality habitat supporting a diverse community of wildlife.

The bird species listed in Table 3 were observed on or near the Lake Creek Idaho Property by citizen scientists collecting data using eBird, a web application used to collect ornithological data throughout the Inland Northwest (eBird, 2025).

Table 3: Lake Creek Idaho Bird Survey Data		
Waterfowl Canada Goose Mallard	**Grouse & Quail** Wild Turkey	**Shorebirds** Killdeer
Gulls & Terns Ring-billed Gull Herring Gull Glaucous Gull California Gull Iceland Gull	**Corvids** Black-billed Magpie American Crow Common Raven	**Blackbirds** Western Meadowlark Red-winged Blackbird Rusty Blackbird Brewer's Blackbird
Vultures & Hawks Bald Eagle Red-tailed Hawk Rough-legged Hawk	**Tits & Chickadees** Black-capped Chickadee Mountain Chickadee	**New World Sparrows** Song Sparrow Spotted Towhee
Woodpeckers Northern Flicker	**Martins & Swallows** Violet-green Swallow	**Nuthatches** Red-breasted Nuthatch
Wrens Marsh Wren	**Starlings & Mynas** European Starling	**Thrushes** American Robin
Finches & Euphonias House Finch American Goldfinch		

IV. Concluding Remarks

This baseline data inventory is an accurate representation of the Lake Creek Idaho Property. The predominant aerial photo used in this baseline is 2021 USDA NAIP Imagery at 1: 24,000.

This is a business record of Inland Northwest Land Conservancy prepared in its normal course of business.

V. Attachments

Maps:
Current Aerial Imagery Map – 1: 24,000
Development Envelope Map – 1: 6,000
Stewardship Map – 1 : 24,000
Location Map - 1: 250,000
Labeled Parcel Map – 1: 24,000
Climate Resilience Map - 1: 24,000
Water Resources Map – 1: 24,000
Soils Map & Hillshade Map - 1: 24,000

Historic Air Photos
Taken from Google Earth Imagery, 1 : 23,000

Photo Plate from Site Visit
Date of Site Visit: Thursday, May 15, 2025
INLC Staff Present: Rose Macaulay

Literature Cited

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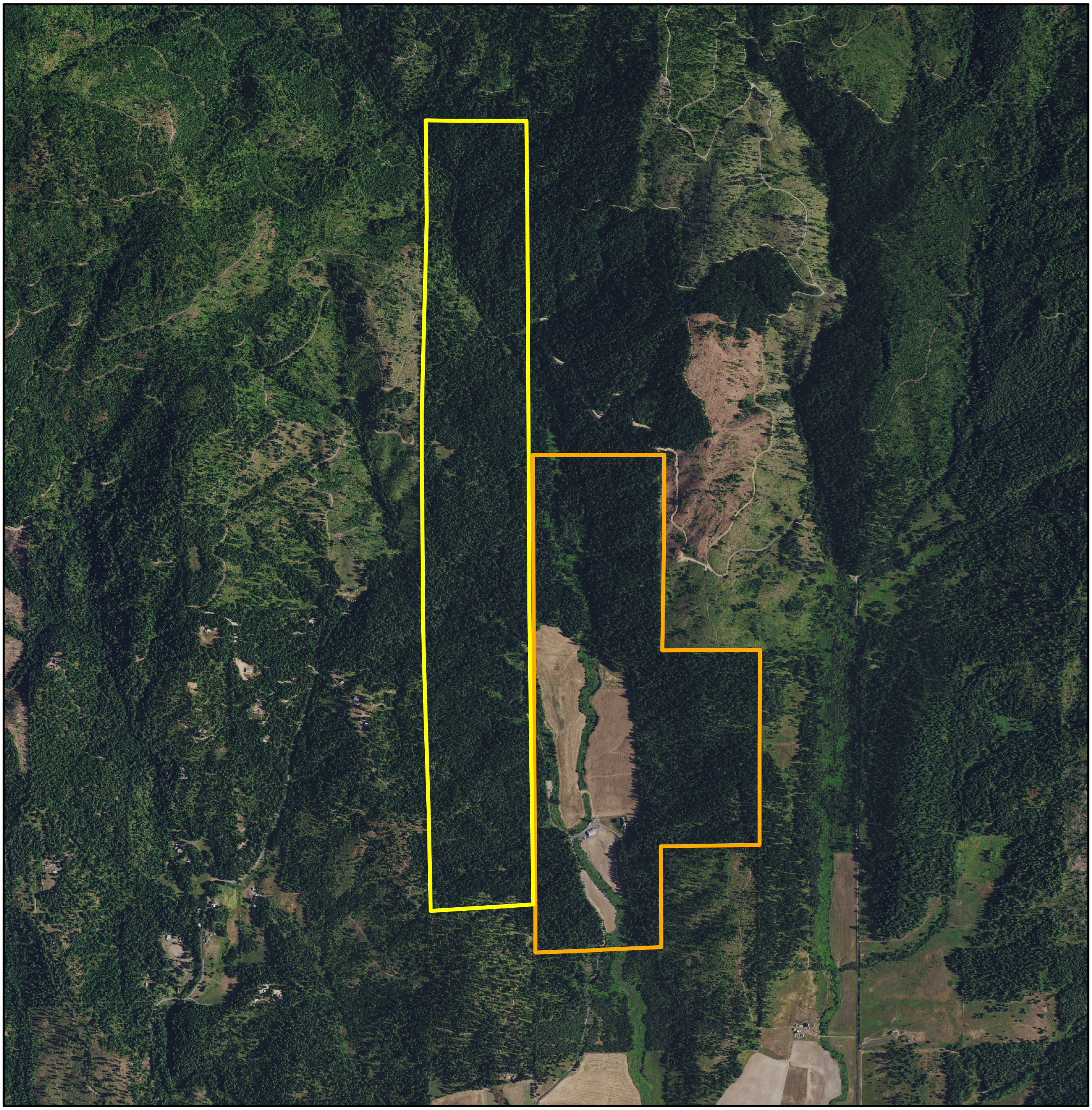


338 & 339 - Lake Creek Farm Conservation Easement

Current Aerial Imagery

1 : 24,000

0 1,200 2,400 4,800 Feet

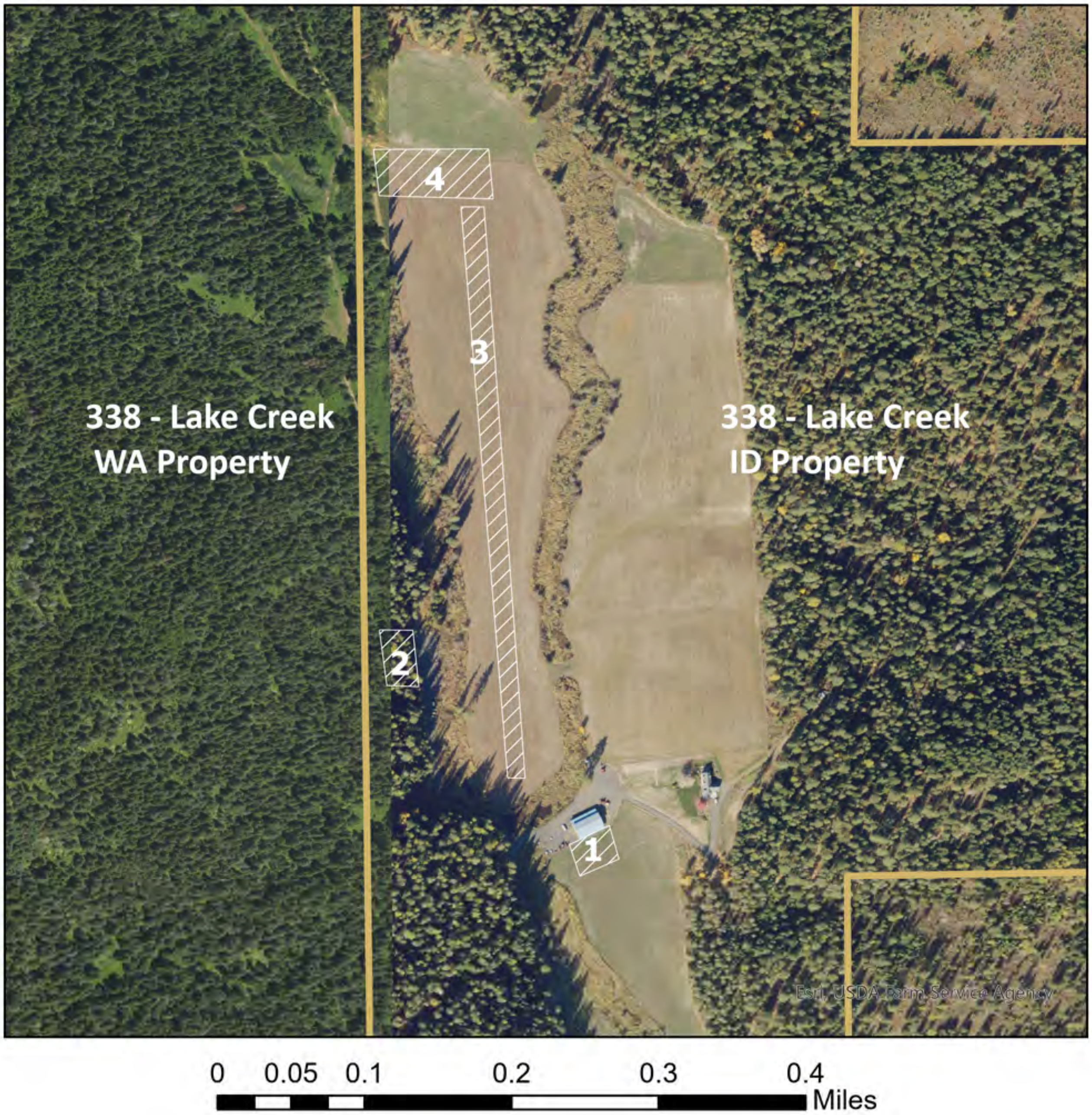
Legend

Lake Creek Farm - Washington

Lake Creek Farm - Idaho

Due to the reliance on outside data sources, no warranty for the accuracy of the data! BOUNDARIES ARE APPROXIMATE!

Data Sources:
Boundaries - 2023 County Parcels
Imagery - 2021 USDA NAIP
Produced by: Rose Richardson
Produced: 2/2024



#339 - Lake Creek - ID / Bauer Property
Development Envelopes
General Locations

Exhibit - D

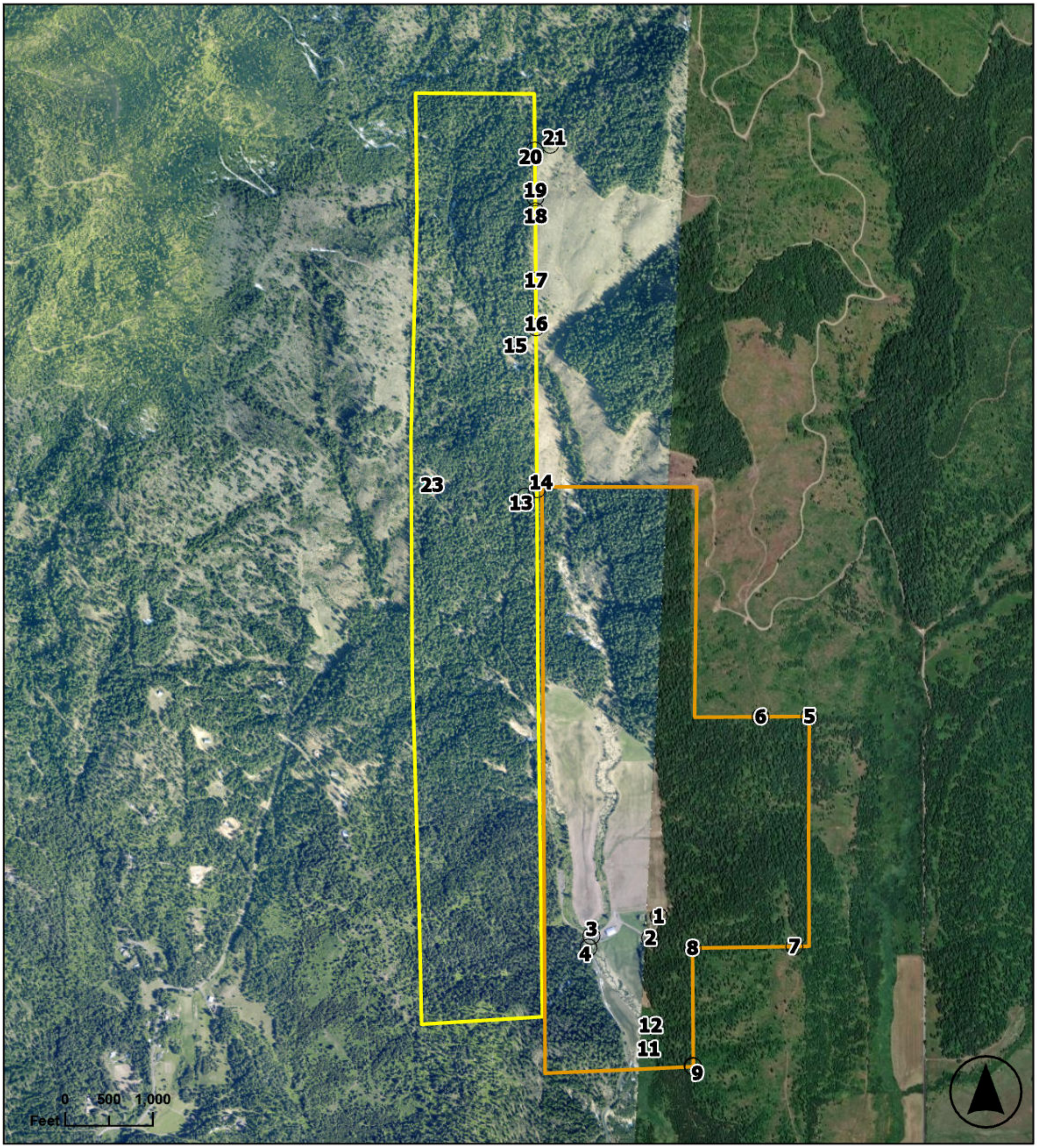
Legend

Development Envelope

- 1 - Agricultural Shop 1
- 2 - Agricultural Shop 2
- 3 - Grass Runway
- 4 - Hanger

INLAND NW LAND CONSERVANCY

Produced by: Michael Crabtree
All boundaries are approximate



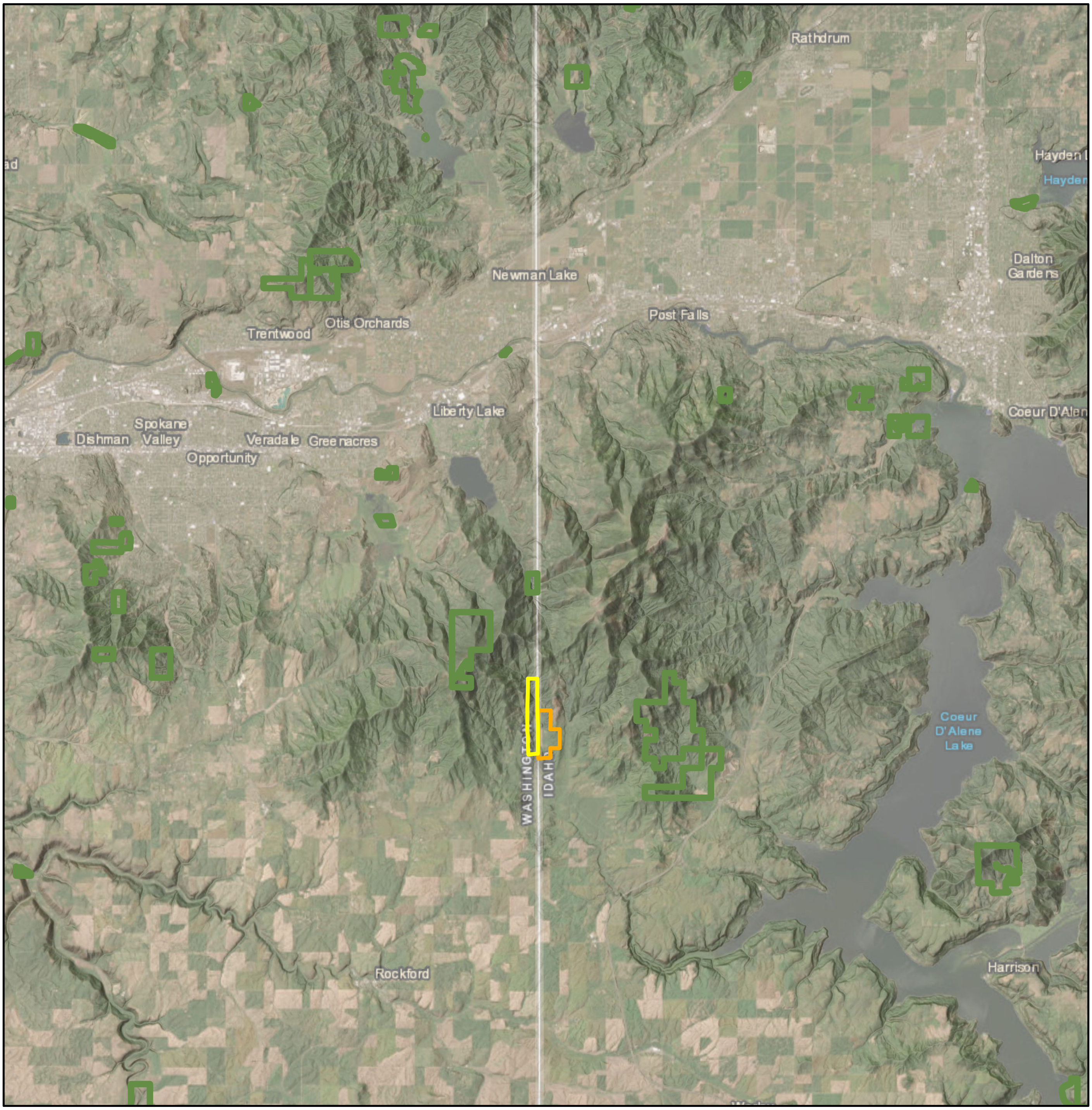
Legend
Lake Creek Washington
Lake Creek Idaho
Photo Points

338-339 - Lake Creek Conservation Easement

Stewardship

Due to the reliance on outside data sources,
no warranty for the accuracy of the data!
BOUNDARIES ARE APPROXIMATE!

INLAND NW LAND CONSERVANCY



N

338 & 339 - Lake Creek Farm Conservation Easement

INLAND NW LAND CONSERVANCY

Legend

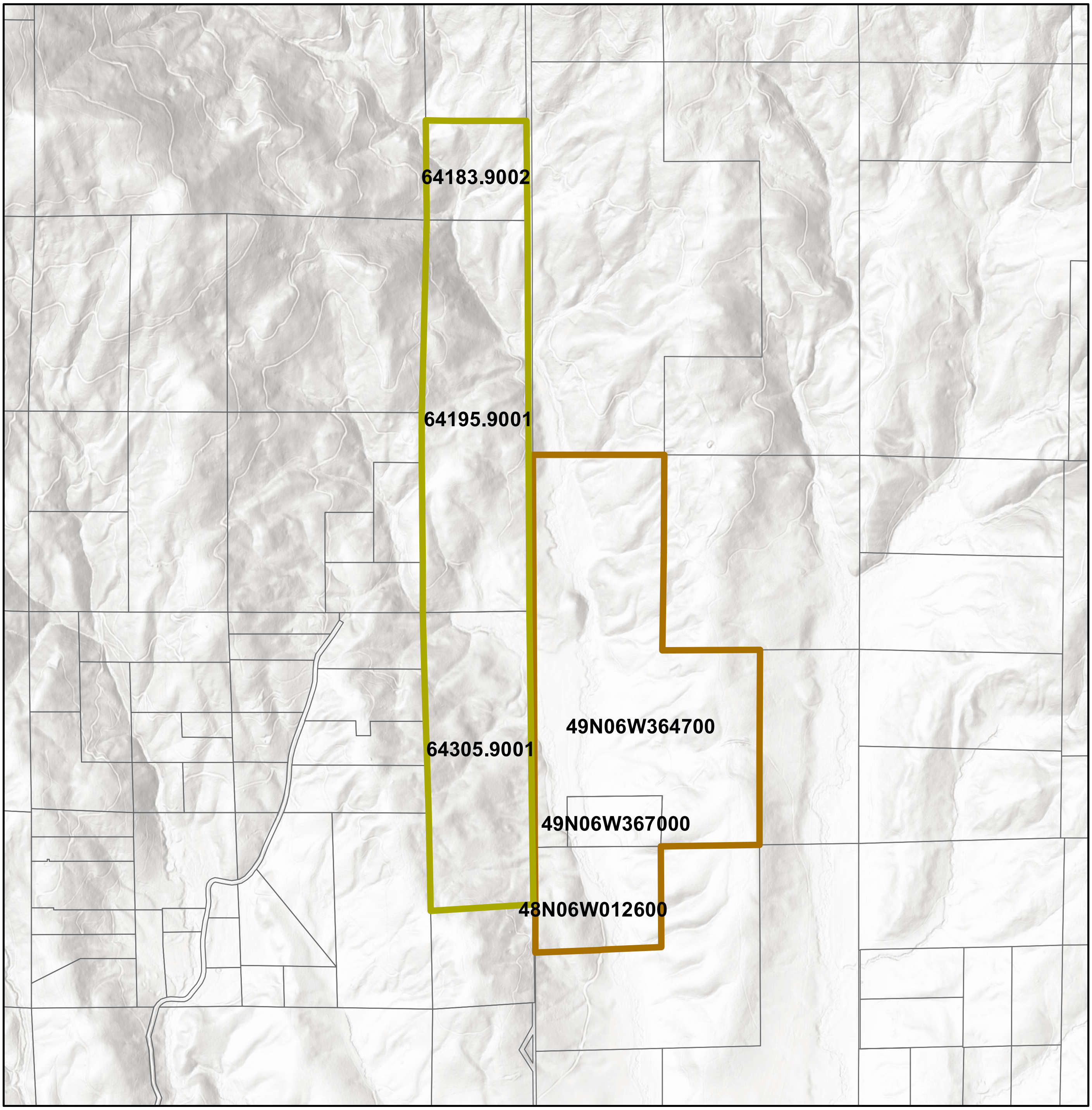
- Lake Creek Farm - Washington
- Lake Creek Farm - Idaho
- Complete

Location

1 : 250,000

0 2.25 4.5 9 Miles

Due to the reliance on outside data sources,
no warranty for the accuracy of the data!
BOUNDARIES ARE APPROXIMATE!
Data Sources:
Boundaries - 2023 County Parcels
Imagery - ESRI Hillshade
Produced by: Rose Richardson
Produced: 2/2024



338 & 339 - Lake Creek Farm Conservation Easement

Parcels

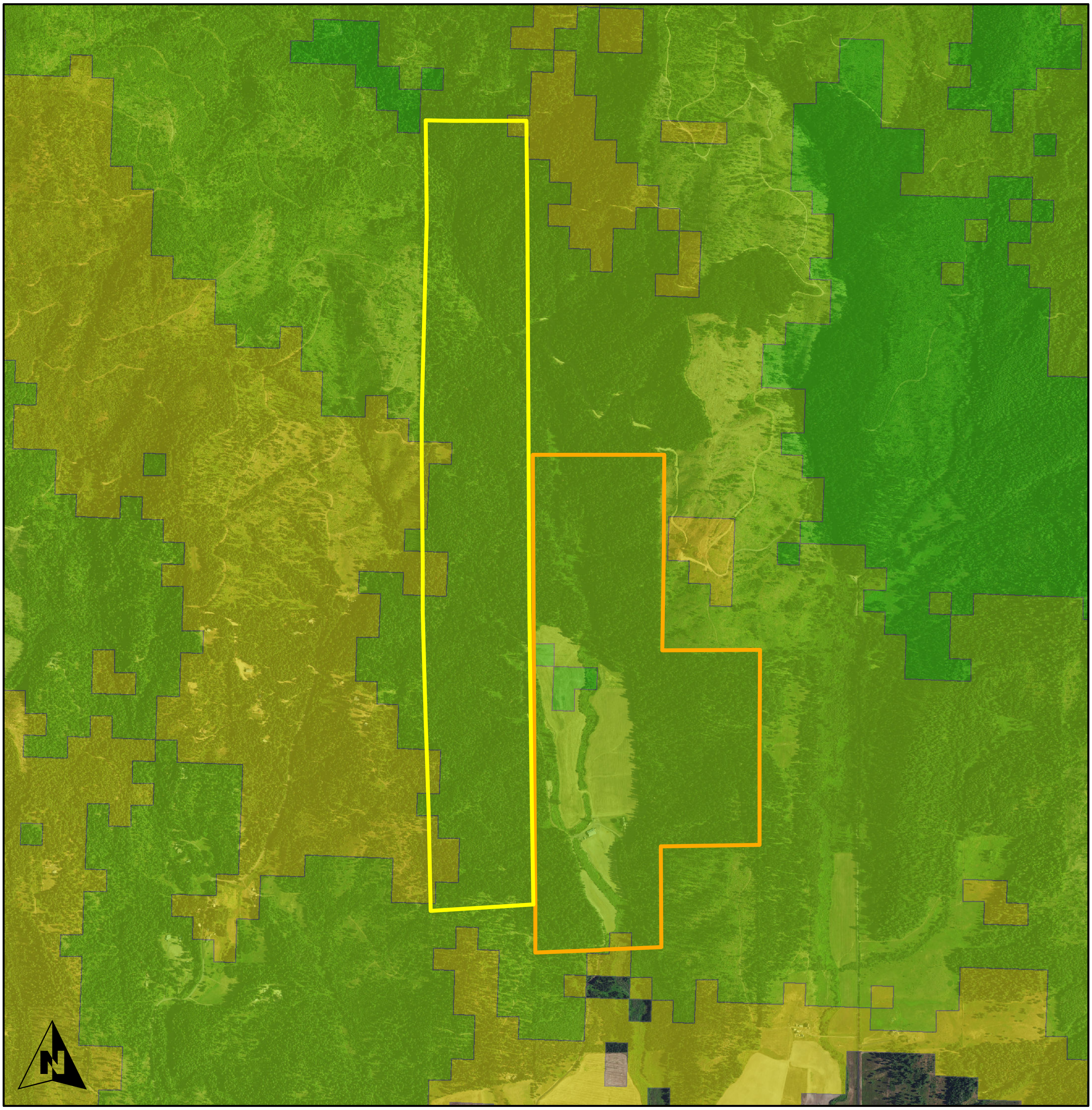
1 : 24,000

0 1,200 2,400 4,800 Feet

Legend

- Lake Creek Farm - Washington
- Lake Creek Farm - Idaho
- Parcels

Due to the reliance on outside data sources, no warranty for the accuracy of the data!
BOUNDARIES ARE APPROXIMATE!
Data Sources:
Boundaries - 2023 County Parcels
Imagery - 2021 USDA NAIP
Produced by: Rose Richardson
Produced: 2/2024



Legend

Lake Creek Farm - Washington

Lake Creek Farm - Idaho

Climate Resilience

Average

Above Average

Far Above

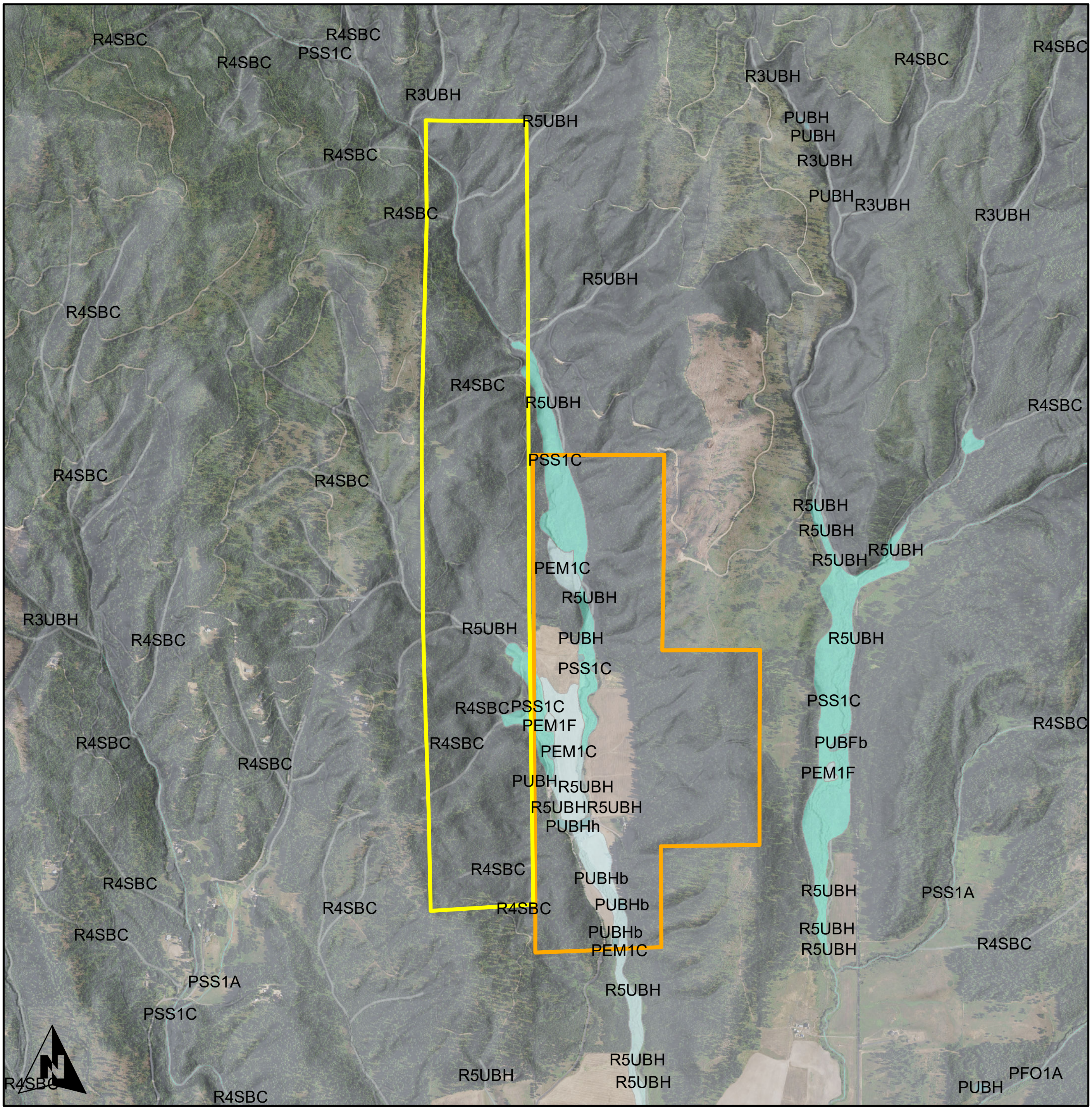
338 & 339 - Lake Creek Farm Conservation Easement

Climate Resilience

1 : 24,000

0 1,200 2,400 4,800 Feet

Due to the reliance on outside data sources, no warranty for the accuracy of the data! BOUNDARIES ARE APPROXIMATE!
Data Sources:
Boundaries - 2023 County Parcels
Imagery - 2021 USDA NAIP
Climate - The Nature Conservancy
Produced by: Rose Richardson
Produced: 2/2024



Legend

Lake Creek Farm - Washington

Lake Creek Farm - Idaho

WETLAND TYPE

Freshwater Emergent Wetland

Freshwater Forested/Shrub Wetland

Freshwater Pond

Riverine

338 & 339 - Lake Creek Farm Conservation Easement

Water Resources

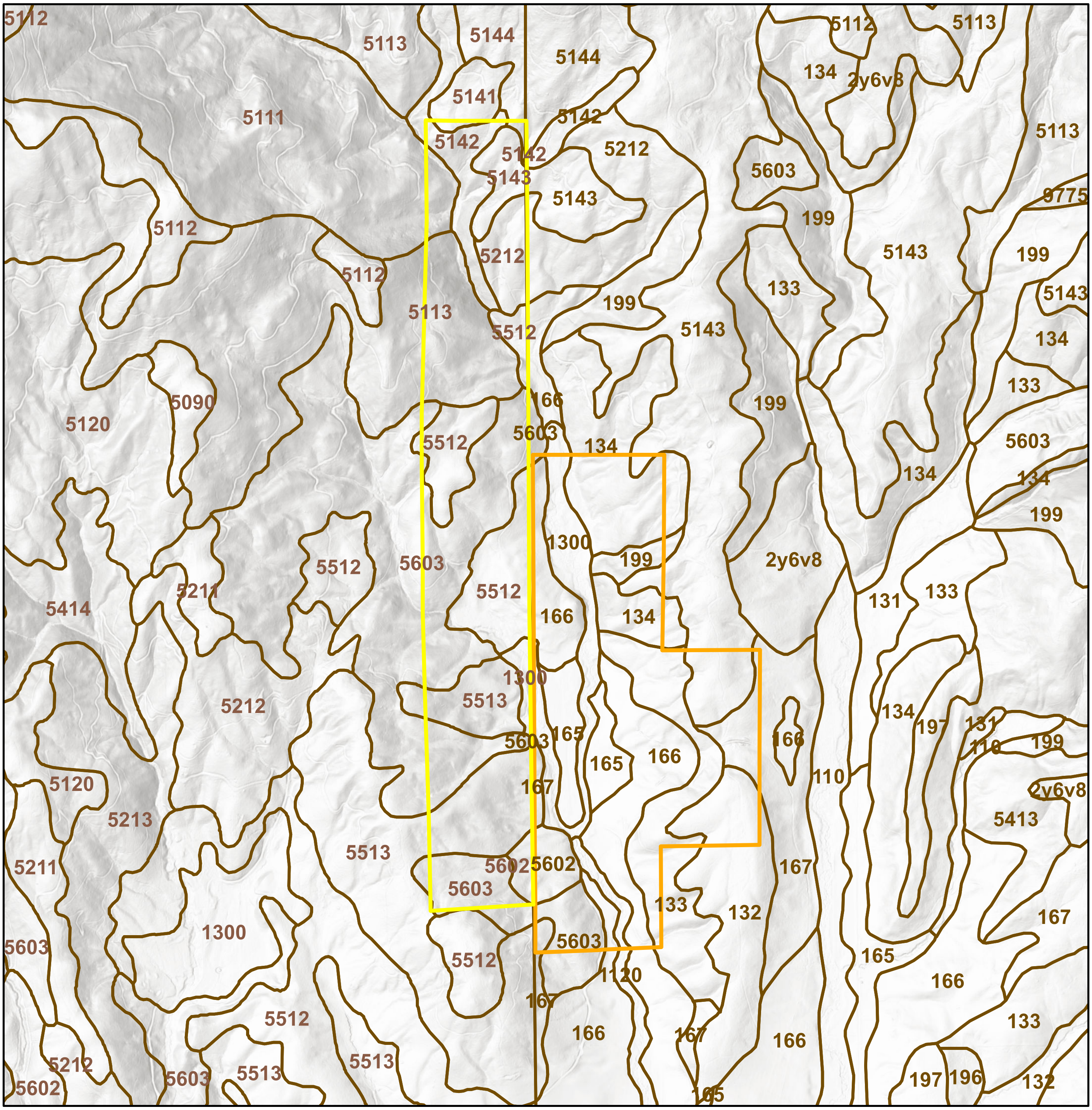
1 : 24,000

0 1,200 2,400 4,800 Feet

INLAND NW LAND CONSERVANCY

Due to the reliance on outside data sources, no warranty for the accuracy of the data! BOUNDARIES ARE APPROXIMATE!

Data Sources:
Boundaries - 2023 County Parcels
Imagery - ESRI Hillshade
Water - USFWS Wetland Inventory
Produced by: Rose Richardson
Produced: 2/2024



N

338 & 339 - Lake Creek Farm Conservation Easement

Legend

Lake Creek Farm - Washington

Lake Creek Farm - Idaho

Soils

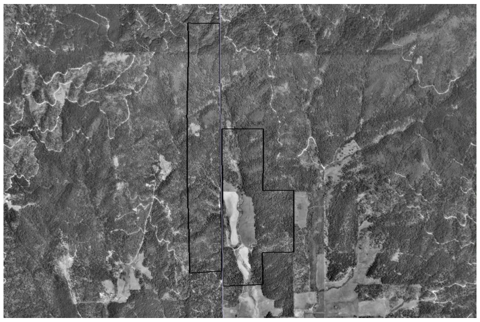
Soils & Hillshade

1 : 24,000

0 1,200 2,400 4,800 Feet

Due to the reliance on outside data sources,
no warranty for the accuracy of the data!
BOUNDARIES ARE APPROXIMATE!
Data Sources:
Boundaries - 2023 County Parcels
Imagery - ESRI Hillshade
Soils - USDA Soil Survey
Produced by: Rose Richardson
Produced: 2/2024

338-339 - Lake Creek Farm Conservation Easement - Historic Air Photos



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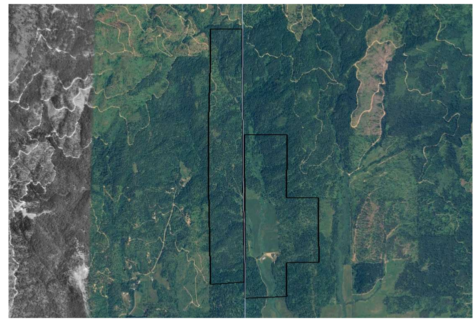

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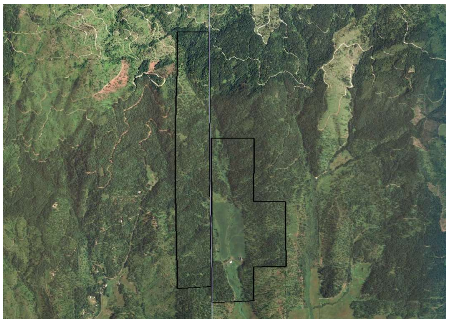

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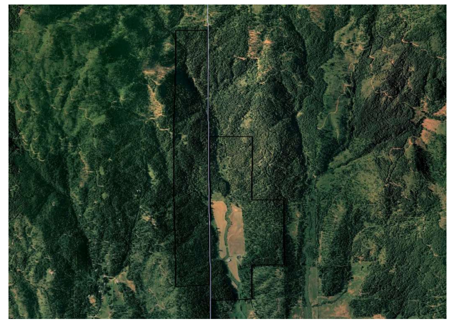

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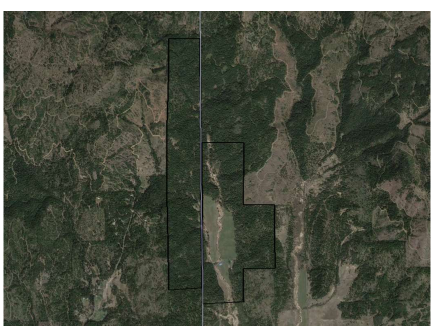

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